

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

SHAQUANA HAYNES-WARD, on behalf
of herself and her minor child **D.M.**,

Plaintiffs,

-against-

**THE CITY OF NEW YORK; and JOHN
DOES 1-10,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates New York County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
March 13, 2023

Rickner PLLC

By:



Stephanie Panousieris

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New York, New York 10005
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TO:

THE CITY OF NEW YORK
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

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COMPLAINT

Plaintiff Shaquana Haynes-Ward, on behalf of herself and her minor child, D.M., by their attorneys at Rickner PLLC, complaining of the Defendants, alleges, upon information, belief, and personal knowledge:

NATURE OF THE CASE

1. Plaintiff Shaquana Haynes-Ward and her minor child, D.M., bring this action against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiffs’ rights under the Constitution of the United States, Constitution of the State of New York, and under the common laws and statutes of the State and City of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiffs’ rights under the Constitution of the United States; 42 U.S.C. § 12101, *et seq.*, for violations of Plaintiffs’ rights under the Americans with Disabilities Act; and pursuant to Constitution of the State of New York, and the common laws and statutes of the State and City of New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.
4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller, who designated the claim as number 2022PI002720.
5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on May 9, 2022.
6. Plaintiffs' claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.
7. Venue is properly laid in the Supreme Court of the State of New York, County of the New York, because the Plaintiffs' claims arose in the County of New York.
8. Plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff Shaquana Haynes-Ward ("Haynes-Ward") is and was, at all times relevant to this action, a resident of New York County in the State of New York.
10. Plaintiff D.M. ("D.M.") is a minor child who was, at all times relevant in this action, a resident of New York County in the State of New York. Pursuant to CPLR § 202.5(e)(1)(iii), D.M.'s initials will be used in this action to protect his privacy.
11. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

12. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

13. Defendant City, as a qualified “public entity” within the meaning of Title II of the Americans with Disabilities Act (“ADA”) under 42 U.S.C. § 12131(1) and under C.F.R. § 35.104, and as a recipient of federal financial assistance within the meaning of Section 504 of the Rehabilitation Act, is responsible for issuing guidance for and enforcing reasonable accommodations for arrestees and detained persons with disabilities.

14. Defendant John Does 1–10 (the “Individual Defendants”) were, at all relevant times described herein, NYPD officers employed by the City of New York. At all relevant times, the Individual Defendants were acting under color of New York State law, and acting in the course and scope of their duties attendant to that employment. Each is sued in an individual capacity.

15. The true names and shield numbers of the Individual Defendants are not currently known to Plaintiffs. However, each is an employee or agent of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice that (a) Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers are known; and (b) the Law Department should immediately begin preparing these officers defense in this action.

16. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the

NYPD at all times relevant herein, with the power and authority vested in them as officers and employees of the NYPD, and incidental to the lawful pursuit of their duties as NYPD officers.

17. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFFS' CIVIL RIGHTS

18. On or about December 14, 2021, Plaintiff Shaquana Haynes-Ward called 911 seeking assistance transporting her son, D.M.—who suffers from severe mental and developmental health issues—to a nearby hospital.

19. D.M., who was thirteen at the time, had left home and did not return for several days. On December 14, he reappeared outside the family apartment, and Haynes-Ward called for emergency services, as she was previously advised to do by D.M.'s medical providers.

20. The officers of the 34th precinct, including the Individual Defendants, were familiar with D.M.'s mental health status, as Haynes-Ward had worked with the precinct on prior occasions to keep her son safe, including in instances such as this one, where he needed an emergency medical intervention and transport to a hospital for mental health care after running away.

21. But when the Individual Defendants arrived at the apartment on December 14, 2021, they insisted that Haynes-Ward take her son inside the apartment and deal with the crisis herself.

22. When Haynes-Ward reiterated that her son was sick and needed help, the Individual Defendants stated that if Haynes-Ward did not take D.M. inside their home, they would arrest her.

23. Haynes-Ward asked why she would be arrested, and repeated that her son was sick and needed to be transported to a hospital.

24. During this time, D.M. was sitting on the ground outside the apartment with a stray dog he brought home after being gone for several days.

25. Haynes-Ward continued to plead with the officers to help her son and get him to a hospital, but the officers refused this request.

26. Eventually, after Haynes-Ward asked to speak with a supervisor, one of the Individual Defendants crossed the threshold of Plaintiffs' front door and held it open with his foot.

27. When Haynes-Ward told the officer he was violating her rights, the officer kicked the door in toward her.

28. Haynes-Ward asked the officer to stop kicking her door and said that she would step into the hallway to speak to the officers.

29. She was wheelchair bound due to paralysis on her left side caused by a recent stroke, and primarily relied on her wheelchair to ambulate at the time of this incident.

30. Haynes-Ward's wife assisted her from her chair onto her walker so she could stand in the hallway with the officers.

31. The Individual Defendants then cuffed Haynes-Ward's right hand to her walker, in front of D.M., but refused to tell her the basis of the erroneous arrest. They then turned to the 13-year-old child and asked him directly if he had any family nearby with whom he could stay.

32. Haynes-Ward explained that she was D.M.'s only available family, and that her son needed to remain with her and go to the hospital.

33. The Individual Defendants ignored Haynes-Ward, whispered back and forth with D.M., and allowed the child to "lead" them to a home across the street, where the officers left D.M. with an adult male who was (and remains) completely unknown to Haynes-Ward.

34. Haynes-Ward protested as the Individual Defendants took her son away, repeating that he would be in danger without proper medical intervention. At the time, she had no idea where the officers had taken her son.

35. The Individual Defendants proceeded to re-cuff Haynes-Ward to her wheelchair and told her she would need to wait for a car that could accommodate her wheelchair.

36. Hours went by until Haynes-Ward was eventually taken downstairs for transport to the precinct. Her wife explained to the officers that Haynes-Ward had just had a stroke and suffered from paralysis on her left side as well as a tumor in her spine, and the officers needed to be extremely careful handling her.

37. But Individual Defendants had not obtained an accessible-vehicle as they said they would, and they recklessly attempted to lift Haynes-Ward into a regular police vehicle, dropping her in the process.

38. Half of her body fell inside of the vehicle, while the other half hit the concrete as her wheelchair rolled backwards from underneath her.

39. Haynes-Ward's wife then insisted that she be the one to lift her spouse into the non-accessible vehicle to avoid further injury, and was able to place her spouse into the car.

40. During transport, Haynes-Ward learned that the Individual Defendant left D.M. with his "uncle" across the street.

41. Haynes-Ward told the officers that D.M. had no family in the neighborhood, and no "uncle" across the street, and told the officers they had just left her son with a stranger in the midst of his mental health crisis. To this day, Haynes-Ward does not know the identity of this stranger or the exact location where the Individual Defendants left her son during her detention.

42. The officer driving the police transport vehicle began apologizing to Haynes-Ward and telling her this entire incident and arrest never should have happened, acknowledging that the officers knew the family and had previously assisted both mother and child at the same location.

43. Upon arrival at the 47th precinct, Haynes-Ward's wife lifted her from the non-accessible vehicle into the wheelchair the officers had tried to leave behind at the apartment.

44. When Haynes-Ward entered the 47th precinct, the Lieutenant on duty was mortified to see a wheelchair-bound woman cuffed in a cell without any legitimate arrest charges, and he asked Haynes-Ward about the events leading up to her arrest.

45. After Haynes-Ward told the Lieutenant what happened over the course of the last several hours, he insisted that Haynes-Ward be released as soon as possible.

46. The Lieutenant began questioning the Individual Defendants about why they arrested her or brought her to his precinct rather than their own.

47. Haynes-Ward remained cuffed to her chair in a cell for approximately one hour while begging the officers to find and help her son.

48. She also told the officers that her stepmother's funeral was that morning, and she was concerned that she would miss the services if she remained detained.

49. By the time she was released, Haynes-Ward was unable to get to the funeral in time, compounding the significant emotional injuries she sustained as a result of her wrongful arrest.

50. Haynes-Ward had to contact the Administration for Children's Services to discover the status and location of her son, D.M., who was never taken to the hospital or checked on by the Individual Defendants, who knowingly left him in the care of a stranger.

THE INJURIES TO PLAINTIFFS

51. This action seeks damages for physical and emotional pain and suffering, loss of liberty, loss of familial association, warrantless entry, and all other injuries flowing therefrom, that Plaintiffs were forced to endure as a consequence of the Individual Defendants' actions.

52. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

53. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CLAIM FOR RELIEF: DENIAL OF FAMILIAL ASSOCIATION UNDER 42 U.S.C. § 1983 AGAINST THE INDIVIDUAL DEFENDANTS

54. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained herein with the same force and effect as if fully set forth below, and further allege as follows:

55. The Fourteenth Amendment to the United States Constitution prohibits the deprivation of one's life, liberty, or property without due process of law.

56. This substantive right also includes the right to be free from unwanted and unreasonable government intrusion into one's family life.

57. By separating D.M. and Haynes-Ward, leaving D.M. with a stranger against his mother's direct wishes, and falsely arresting and detaining Haynes-Ward, the Individual Defendants unreasonably interfered with the parent-child relationship.

58. By virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived of their civil rights guaranteed under the Fourteenth Amendment to the United States

Constitution to be free from unreasonable intrusion into their family life, and the Individual Defendants are liable to Plaintiff for damages under 42 U.S.C. § 1983.

59. As a result of the above unconstitutional conduct, Plaintiffs suffered physical, economic, and emotional injuries, and the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
BY HAYNES-WARD AGAINST THE INDIVIDUAL DEFENDANTS**

60. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. The Individual Defendants used physical force on Haynes-Ward.

62. The seizure and detention at the hands of the Individual Defendants was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

63. That by virtue of the aforementioned acts by the Individual Defendants, Haynes-Ward was deprived of her civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are liable to Valdez for damages under 42 U.S.C. § 1983.

64. As a result of the above unconstitutional conduct, Haynes-Ward was caused to suffer physical, economic, and emotional injuries, as well as a loss of liberty.

65. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
WARANTLESS ENTRY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

66. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

67. The Individual Defendants unlawfully entered Plaintiffs' home when they crossed the threshold without probable cause, consent, or other legal authority.

68. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived of their civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are liable to Plaintiffs for damages under 42 U.S.C. § 1983.

69. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

70. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FOURTH CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
BY HAYNES-WARD AGAINST THE INDIVIDUAL DEFENDANTS**

71. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

72. The Individual Defendants restrained and arrested Haynes-Ward in the absence of consent, probable cause, or any other legal justification.

73. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiffs were deprived of their civil rights guaranteed under the Fourth Amendment to the United States

Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are liable to Plaintiffs for damages under 42 U.S.C. § 1983.

74. As a result of the above unconstitutional conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

75. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FIFTH CLAIM FOR RELIEF:
VIOLATIONS OF THE AMERICANS WITH DISABILITIES ACT
UNDER 42 U.S.C. § 12131 *et seq.*, AGAINST THE INDIVIDUAL DEFENDANTS AND
THE CITY OF NEW YORK**

76. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. Title II of the ADA prohibits a public entity from excluding a person with a disability from discriminating against a person on the basis of disability.

78. Defendant City is a public entity within the meaning of the ADA.

79. Plaintiffs are qualified individuals with disabilities within the meaning of the ADA, in that they each have impairments which substantially limit major life activities.

80. For Plaintiff Haynes-Ward, her physical disabilities, including her limited ability to ambulate and left-side paralysis, qualify her as a protected person within the meaning of the ADA.

81. For Plaintiff D.M., his mental and developmental disabilities qualify him as a protected person within the meaning of the ADA.

82. Title II of the ADA requires Defendants to operate their public services in a manner that is readily accessible to persons with disabilities.

83. Defendants failed to provide Plaintiff Haynes-Ward with reasonable accommodations for her mobility disability.

84. Defendants failed to provide D.M. with reasonable accommodations for his acute mental health crisis, despite their robust knowledge of D.M.'s medical and mental health history.

85. As a result of these acts and omissions, Plaintiffs were caused to suffer physical, economic, and emotional injuries, and were denied the reasonable accommodations owed to them and the immediate care they required, and are liable to Plaintiff for damages as a result of their callous and unlawful conduct.

**SIXTH CLAIM FOR RELIEF:
VIOLATIONS OF THE REHABILITATION ACT UNDER 42 U.S.C. § 794, *et seq.*
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

86. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

87. Section 504 of the Rehabilitation Act prohibits entities who receive public funding from discriminating on the basis of disability.

88. The City and/or the NYPD are entities within the meaning of the Rehabilitation Act.

89. Plaintiffs are qualified individuals with disabilities within the meaning of the Act.

90. For Plaintiff Haynes-Ward, her physical disabilities, including her limited ability to ambulate and left-side paralysis, qualify her as a protected person within the meaning of the Act.

91. For Plaintiff D.M., his mental and developmental disabilities qualify him as a protected person within the meaning of the Act.

92. Defendants failed to provide Plaintiff Haynes-Ward with reasonable accommodations for her mobility disability.

93. Defendants failed to provide D.M. with reasonable accommodations for his acute mental health crisis and developmental disorder despite their robust knowledge of D.M.'s medical and mental health history.

94. As a result of these acts and omissions, Plaintiffs were caused to suffer physical, economic, and emotional injuries, and were denied the reasonable accommodations owed to them and the immediate care they required, and are liable to Plaintiff for damages as a result of their callous and unlawful conduct.

**SEVENTH CLAIM FOR RELIEF:
VIOLATIONS OF N.Y.C. HUMAN RIGHTS LAW
UNDER ADMIN. CODE § 8-801 *et seq.*, AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

95. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

96. The New York City Human Rights Law protects persons with disabilities from discrimination in places of public accommodation.

97. Plaintiffs have qualified disabilities within the meaning of the Administrative Code, and Defendants are covered entities that have failed to provide reasonable accommodations to Plaintiffs for their disabilities, and have unlawfully discriminated against Plaintiffs as a result.

98. As a result of these acts and omissions, Plaintiffs were caused to suffer physical, economic, and emotional injuries, and were denied the reasonable accommodations owed to them and the immediate care they required, and Defendants are liable to Plaintiff for damages as a result of their callous and unlawful conduct.

99. As a result of this conduct, the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
ASSAULT BY HAYNES-WARD AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

100.Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

101.The Individual Defendants intentionally, willfully, and maliciously assaulted Plaintiffs, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact, and that such acts caused apprehension of such contact in the Plaintiff.

102.As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

103.As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
BATTERY BY HAYNES-WARD AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

104.Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

105.The Individual Defendants intentionally, willfully, and maliciously battered Haynes-Ward when they, in a hostile and/or offensive manner, grabbed her, arrested her, and tried to lift her into a non-accessible vehicle, without consent and with the intention of causing harmful and/or offensive bodily contact, and causing such bodily contact to occur.

106.As a result of the above tortious conduct, Haynes-Ward was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

107.As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

**TENTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT BY HAYNES-WARD
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

108.Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

109.Plaintiff Haynes-Ward was forcibly removed from her home by the Individual Defendants and detained in the absence of probable cause or other legal authority.

110.That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

111.Plaintiff was conscious of the confinement and did not consent to such confinement.

112.As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

113.As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

**ELEVENTH CLAIM FOR RELIEF:
NEGLIGENT AND/OR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

114.Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

115.The Individual Defendants engaged in extreme and outrageous conduct, which negligently and/or intentionally caused severe emotional distress to Plaintiffs.

116.As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

117. As a result of this tortious conduct, the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

**TWELFTH CLAIM FOR RELIEF:
VIOLATION OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

118. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

119. The conduct of the Individual Defendants breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to:

- a. freedom from unreasonable search and seizure of her person and property;
- b. freedom from arrest without probable cause;
- c. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- d. freedom from deprivation of liberty without due process of law.

120. As a direct and proximate result of the Individual Defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

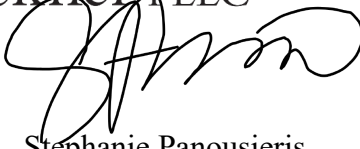
121. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages, as is the City of New under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiffs demand the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;

- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
March 13, 2023

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